

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index Number:
Date Purchased:

-----X
GETHO THELUSMOND,

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

-against-

CITY OF NEW YORK, POLICE OFFICER
OLHA LISNIAK [Shield # 17117], JOHN DOE
AND JANE DOE 1-2 (the names John and Jane Doe
being fictitious as the true names are presently unknown),

SUMMONS

Defendants.
-----X

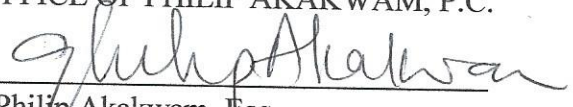
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action by filing same at the Kings County Supreme Court located at Supreme Court Building, 360 Adams Street, Brooklyn, New York 11201 and to serve a copy of your Answer, or if the Complaint is not served with the Summons, to serve a notice of appearance, on the plaintiff within 20 (twenty) days after the service of this summons, exclusive of the day of service (or within 30 (thirty) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in the case of your failure to answer or appear, judgment will be taken against you by default for the relief demanded in the Complaint annexed herewith.

Dated: Brooklyn, New York
October 16, 2017

LAW OFFICE OF PHILIP AKAKWAM, P.C.

By:


Philip Akakwam, Esq.
303 Livingston St., 2nd Floor
Brooklyn, NY 11217
(718) 858-2488
Attorneys for Plaintiff

Defendants' Address:

City of New York
c/o Corporation Counsel
100 Church Street
New York, NY 10007

P.O. Olha Lisniak
70th Precinct
154 Lawrence Ave.
Brooklyn, NY 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
GETHO THELUSMOND,

Index No.:

Plaintiff

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, POLICE OFFICER
OLHA LISNIAK [Shield # 17117], JOHN DOE
AND JANE DOE # 1-2 (the names John and Jane Doe
being fictitious as the true names are presently unknown),Defendants
-----X

Plaintiff, by his attorneys, LAW OFFICE OF PHILIP AKAKWAM, P.C., as and for his
Complaint, respectfully alleges, upon information and belief:

INTRODUCTION

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 U.S.C. §§ 1983 and 1985 (3), and the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, and the laws and statutes of the City and State of New York. This case arose from an incident which occurred on or about August 29, 2016 during which members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, unlawful search, false arrest, assault, retaliation for free speech, abuse of process, malicious prosecution and harassment.

2. Plaintiff seeks compensatory and punitive, declaratory relief, an award of costs and attorneys fees and such other and further relief as the Court deems just and proper.

NOTICE OF CLAIM

3. All conditions precedent to filing of this action have been complied with; plaintiff

filed timely notice of claim against the City, in compliance with General Municipal Law Section 50. The said Notice of Claim was assigned claim number 2017PI005999.

4. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

5. This action has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

THE PARTIES

6. At all times herein mentioned, plaintiff, a black male, was and still is a resident of the County of Kings, City and State of New York.

7. Defendant City of New York is a municipal entity existing under the laws and Constitution of the State of New York and was the public employer of the defendant officers through its Police Department and the actions of the police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

8. Defendant Police Officer Olha Lisniak [Shield # 17117] was at all times material herein a police officer employed by defendant City of New York. He is named here in his official and individual capacities.

9. Upon information and belief and at all times relevant herein, defendants John Doe and Jane Doe # 1-2 were individuals and/or officers employed by defendant City of New York. They are named here in their individual and official capacities.

10. Defendants Lisniak and John Doe and Jane Doe # 1-2 are collectively referred to herein as "defendant officers".

11. At all times relevant herein, the defendant officers acted toward plaintiff under color of the statutes, ordinances, customs, and usage of the State and City of New York.

STATEMENT OF FACTS

12. On August 29, 2015, at approximately 12 midnight, defendant officers, acting in concert, assaulted and arrested plaintiff without cause while plaintiff was seated inside his car which was legally parked on Kampus Road, between Avenue H and Ocean Avenue, Brooklyn, New York.

13. On said date and time, plaintiff had just returned from visiting a friend and then parked his car on the side of the street with the intention of walking down to his parents house nearby where he intended to spend the night as he often does.

14. While plaintiff was seated inside his vehicle with the engine turned off, he was approached by three police officers who asked him what he was doing there. Plaintiff told them that he had just parked his vehicle and was about to go into his parents house to spend the night.

15. One of the officers yelled at plaintiff to get out of the car. Plaintiff asked the officers what he had done and why they would be ordering him out of his car.

16. The officers opened the door to plaintiff's car and yanked him out of the vehicle.

17. And the officers asked plaintiff whether he had any alcohol. Plaintiff told them that he had no alcohol.

18. Plaintiff was handcuffed to his back and searched on the street by the officers.

19. Thereafter, plaintiff was transported to the 78th precinct where the officers requested that plaintiff submit to a Breathalyzer test.

20. Plaintiff declined the request for a Breathalyzer test and told the officers that they had no reason to arrest him while he was sitting in his car which was parallel-parked between two other cars.

21. Plaintiff was detained at the 78th precinct until morning of the following day when

he was transported to the 70th precinct where he was fingerprinted, photographed and thrown into a holding cell.

22. Later plaintiff was taken to Central Booking where he was further detained in a holding cell before being arraigned in court.

23. Defendant officers met with prosecutors employed by the Kings County District Attorney's Office.

24. During this meeting, defendant officers falsely stated to the prosecutors, among other things, that they allegedly observed plaintiff operating a motor vehicle while under the influence of alcohol or drugs.

25. Based on the false testimony of defendant officers, the prosecutors initiated criminal actions against plaintiff.

26. Plaintiff was charged with, among other things, Driving While Intoxicated in violation of Vehicle and Traffic Law (VTL) 1192.3 and Driving While Ability Impaired in violation of VTL 1192.1.

27. Plaintiff was maliciously prosecuted on said false charges until February 8, 2017 when he was acquitted of all the charges after a trial.

28. Following his arrest, plaintiff's car was impounded and his driver's license suspended. The suspension of his license remained until the Administrative judge made a finding of no probable cause at a hearing at the Department of Motor Vehicles.

29. Also, plaintiff, who works for public school custodians, was automatically suspended from his job as a result of the unlawful arrest alleged herein. Plaintiff remained suspended from his job until months after his acquittal.

AND AS FOR A FIRST CAUSE OF ACTION:
42 U.S.C. § 1983 - FALSE ARREST AND IMPRISONMENT

30. Plaintiff reiterates paragraphs 1 through 29 and incorporates such by reference herein.

31. By their conduct and under color of law, defendant officers deprived plaintiff of his constitutional right to be free from false arrest and false imprisonment.

32. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AND AS FOR A SECOND CAUSE OF ACTION:
42 U.S.C. § 1983 - MALICIOUS PROSECUTION

33. Plaintiff reiterates paragraphs 1 through 32 and incorporates such by reference herein.

34. Plaintiff was subjected to malicious prosecution and malicious abuse of the criminal process in violation of his right under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

35. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AND AS FOR A THIRD CAUSE OF ACTION
(Monell/42 U.S.C. Section 1983: Claim Against Defendant City of New York)

36. Plaintiff reiterates paragraphs 1 through 35 and incorporates such by reference herein.

37. The foregoing violations of plaintiff's constitutional rights and resultant injuries

were directly and proximately caused by conduct, chargeable to defendant City, amounting to deliberate indifference to the constitutional rights of persons, including plaintiff, who are investigated, arrested, or prosecuted for alleged criminal activities.

38. The defendant City, through its police department, the NYPD, has developed and maintained policies and customs exhibiting deliberate indifference to the constitutional rights of its citizens, which caused the violations of plaintiff's rights.

39. It was the policy and/or custom of the City to undertake inadequate and improper investigations of civilian complaints of police misconduct and to punish inadequately officers involved in complaints which were substantiated.

40. Defendant City, acting through the NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiff, who is black, on the pretext that they were involved in narcotics, drugs, guns and/or other illicit activities.

41. The aforesaid deliberate or *de facto* policies, procedures, regulations, practices and/or customs were implemented or tolerated by policymaking officials for defendant City including but not limited to, the New York City Police Commissioner, who knew or should have known that such policies, procedures, regulations, practices and/or customs concern issues that regularly arise in the investigation and prosecution of criminal cases.

42. Defendant City, acting through the NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning: correct practices in conducting investigations, the unlawfulness of racial profiling, reasonable search of individuals and/or their properties, obligation not to promote or

condone perjury and/or assist in the prosecution of innocent persons and obligation to effect an arrest only when there is probable cause for such arrest.

43. The policymaking officials at NYPD know or ought to have known that such issues that regularly arise in the investigation and prosecution of criminal cases either present police employees with difficult choices of the sort that instruction, training and/or supervision will make less difficult or that the need for further instruction, training, supervision and/or discipline was demonstrated by a history of police employees mishandling such situations and making the wrong choice.

44. As a result of inadequate training of police officers on the practical meaning of probable cause for arrest, officers frequently detain and/or arrest citizens based on their hunches, inklings, or mere suspicion and without reasonable or probable cause.

45. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

AND AS FOR A FOURTH CAUSE OF ACTION:
NEW YORK STATE CONSTITUTION, ARTICLE 1, §§ 5, 6, 8, 11 & 12

46. Plaintiff reiterates paragraphs 1 through 45 and incorporates such by reference herein.

47. By arresting, detaining and prosecuting plaintiff without probable cause or reasonable suspicion and assaulting plaintiff, the defendant officers, deprived plaintiff of rights, remedies, privileges and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York State Constitution.

48. In addition, the defendant officers conspired among themselves to deprive

plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York State Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

49. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Such acts by Defendant Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York State Constitution.

50. Defendants, their officers, attorneys, agents, servants and employees were responsible for deprivation of Plaintiff's State Constitutional rights. Defendant City, as employer of each of the defendant officers, is responsible for their wrongdoing under the common law doctrine of *respondeat superior*.

51. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

**AND AS FOR A FIFTH CAUSE OF ACTION:
TORTS - FALSE ARREST/IMPRISONMENT**

52. Plaintiff reiterates paragraphs 1 through 51 and incorporates such by reference herein.

53. The conduct of the defendants, as described herein, amounted to false arrest and imprisonment.

54. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually

and severally.

AND AS FOR AN SIXTH CAUSE OF ACTION:
TORTS - MALICIOUS PROSECUTION

55. Plaintiff reiterates paragraphs 1 through 54 and incorporates such by reference herein.

56. Defendants caused and/or procured the malicious prosecution of plaintiff without any just right or grounds therefor.

57. That the plaintiff was wholly innocent of said charges and was forced by defendants to submit to Court proceedings.

58. Plaintiff was arraigned on the aforesaid charges and thereafter subjected to criminal prosecution.

59. Defendants commenced the criminal proceeding against plaintiff because of a wrong or improper motive other than a desire to see the ends of justice served.

60. The aforesaid criminal proceeding was commenced by reason of defendants' intentional wanton, reckless and/or grossly negligent conduct.

61. That the defendants commenced a criminal proceeding against the plaintiff; that defendants caused plaintiff to be arraigned on false criminal charges; that there was an absence of probable cause for the criminal proceeding and that there was actual malice by the defendants against the plaintiff.

62. That on February 8, 2017, plaintiff was acquitted of all the criminal charges after a trial.

63. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually

and severally.

**AND AS FOR A SEVENTH CAUSE OF ACTION:
TORTS - ASSAULT AND BATTERY**

64. Plaintiff reiterates paragraphs 1 through 63 and incorporates such by reference herein.

65. By their conduct, as set forth above, defendant officers committed acts of battery against plaintiff which included violently pulling him out of his vehicle without cause. The use of physical force against plaintiff was willful, unwarranted, and excessive.

66. The defendant City is responsible for the unnecessary force used by the defendant officers as set forth above because the misconduct occurred while they were acting in the scope of their employment, specifically in the course of arresting plaintiff.

67. By reason of and as a consequence of the assault detailed above, plaintiff suffered physical and mental injuries.

68. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

**AND AS FOR AN EIGHT CAUSE OF ACTION:
RESPONDEAT SUPERIOR**

69. Plaintiff reiterates paragraphs 1 through 68 and incorporates such by reference herein.

70. Upon information and belief and at all relevant times, defendant officers were the employees of the City of New York and were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

71. Defendant City is, therefore, liable under the doctrine of *respondeat superior* for

their tortious actions.

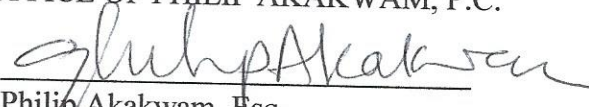
72. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

WHEREFORE, plaintiff demands judgment against the Defendants as follows:

- i. For compensatory damages in an amount to be determined at trial - against all defendants, jointly and severally;
- ii. For punitive damages against the individual defendants in an amount to be determined at trial;
- iii. For reasonable attorneys' fees, together with costs and disbursements of this action, pursuant to 42 U.S.C. § 1988 and to the inherent powers of this Court;
- iv. For pre-judgment interest as allowed by law; and
- v. For such other and further relief as the court deems just and proper.

Dated: Brooklyn, New York
October 16, 2017

LAW OFFICE OF PHILIP AKAKWAM, P.C.

By: 

Philip Akakwam, Esq.
Attorneys for the Plaintiff
303 Livingston Street, 2nd Floor
Brooklyn, N.Y. 11217
(718) 858-2488

VERIFICATION

Getho Thelusmond, being duly sworn states as follows:

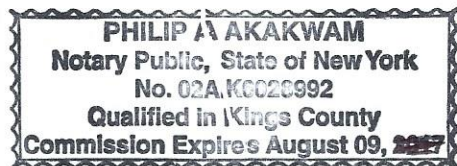
1. I am the plaintiff in the within action and as such I am fully familiar with the facts of this case.
2. I have read the foregoing Complaint and know the contents thereof, that the same is true to the best of my knowledge and recollection, except as to matters stated upon information and belief, and as to those matters, I believe them to be true.

Dated: Brooklyn, New York
October 16, 2017

Getho Thelusmond
Getho Thelusmond

Sworn to before me this
16th day of Oct, 2017

Philip A Akakwam
NOTARY PUBLIC



Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

GETHO THELUSMOND

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER
OLHA LISNIAK [Shield # 17117], JOHN DOE
AND JANE DOE 1-2 (the names John and Jane Doe
being fictitious as the true names are presently unknown)

Defendant.

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF PHILIP AKAKWAM, P.C.
Attorney for Plaintiff
Office and Post Office Address
303 Livingston Street, 2nd Floor
Brooklyn, N.Y. 11217
(718) 858-2488

TO:

Service of a copy of the within is hereby admitted.

Dated:
